

pleadings or further clarification of what James believes was omitted, it cannot be said that the supplemental response is not code compliant or warrants a further response. There is no specific argument regarding how the supplemental responses to FROG 15.1(c) regarding identification of documents is deficient. Per the separate statement, the Tatums appear to have removed the references to CCP § 2030.230 and identify documents by name. This is sufficient.

For these reasons, the court denies the request to compel further supplemental responses to FROG 15.1(b) or (c). Because James fails to support the argument regarding the failure to address the denial of material allegations or even identify any such denied material allegations, the court denies James' alternative request for an "...order that any factual allegations in the Second Amended Cross-complaint which are not addressed in the above response are deemed admitted..." (See James' Separate Statement, p. 16:1-6.)

FROG 17.1: James argues that the supplemental responses "essentially contain only one sentence factual responses" or refer to a single document, the Binding Term Sheet. (See James' Separate Statement, p. 37:19-26.) As typed in the Separate Statement, the supplement response to FROG 17.1 appears sufficient. For each RFA, the Tatums address the factual reasoning for the denial, identify the names of witnesses, and refer to documents by title rather than rely on CCP § 2030.230. James' argument amounts to his personal belief that there should be more facts, witnesses, and documents that support the Tatums' denial. But as with FROG 15.1, the court cannot compel a further response based on James' belief that information is being withheld. Unlike the initial response, the supplemental response respond to each subpart as required by FROG 17.1.

As to the issue of failure to provide an address and telephone number for the identified witnesses, as required by FROG 17.1(c), the response is substantially compliant and this hardly requires the Tatums to supplement the entire FROG 17.1 response. Pursuant to CCP § 2030.090(b), the court should order that to the extent James' requires contact information for any of the witnesses identified in FROG 17.1 and the Tatums have said contact information, the Tatums are to provide the contact information within 4 days rather than undergo the burden of supplementing the entire FROG 17.1 response.

## 2.

| CASE #      | CASE NAME         | HEARING NAME                   |
|-------------|-------------------|--------------------------------|
| CVRI2502491 | WILSON vs LUCIOUS | MOTION TO VACATE THE DISMISSAL |

**Tentative Ruling:** Cross-Complainant's UNOPPOSED Motion to Vacate Dismissal is granted.

Order to Show Cause is set for 10/19/26, as to why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to file request for entry of default of CROSS defendant JIMMY WILSON on CROSS-complaint pursuant to CRC 3.110(g) as to HEELA WARDAK.